
8:30 a.m. Law and Motion

ALVAREZ- HERNANDEZ VS. MENLOVE, ET AL.

CASE NUMBER: 25CV-0207463

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 17, 2026, to Plaintiff and Counsel for failure to appear at an August 10, 2026 hearing. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today’s review hearing set for 9:00 a.m.

BLEAKLEY VS. AIRBNB, INC, ET AL.

CASE NUMBER: 26CV-0210657

Tentative Ruling on Motion for Order Nunc Pro Tunc to Set Filing Date: Plaintiff Michelle Bleakley moves for an Order *nunc pro tunc* setting (or amending) the filing date for the Complaint in this action as May 11, 2026 to correct a clerical error. The Court finds that the filing was improperly rejected by the clerk. Sufficient evidence has been presented of the attempt to file on May 11, 2026. “Courts have inherent power to enter judgments nunc pro tunc so as to relate back to the time when they should have been entered but will do so only to avoid injustice.” *Phillips v. Phillips* (1953) 41 Cal.2d 869, 875. The Motion is **GRANTED**. The proposed order will be executed. The clerk is directed to set the filing date of the Complaint in this matter to May 11, 2026.

DRIVER VS. ERETH

CASE NUMBER: 25CV-0209266

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 13, 2026, to Plaintiff and Counsel for failure to timely serve Defendant pursuant to CRC 3.110(b). No response has been filed. Plaintiff has taken no action on this matter since filing the Complaint on November 21, 2025. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. Failure to appear today will result in the issuance of an OSC re Dismissal.

GAFFNEY VS. PRIME HEALTHCARE ASC - REDDING, LLC, ET AL.

CASE NUMBER: 23CV-0202050

This matter is on calendar for a hearing on compliance with the Court’s Order Granting Approval of PAGA Settlement dated April 28, 2026. A Declaration filed September 23, 2026 provides that settlement administration is not complete. Today's review hearing is continued to **Monday, December 14, 2026 at 9:00 a.m. in Department 64**. Plaintiff is ordered to file a Declaration regarding compliance no later than five court days prior to the future hearing date. No appearances are necessary on today's calendar.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion for Relief from Order: Plaintiff moves for relief from all prior orders imposing discovery sanctions pursuant to Code of Civil Procedure 473(b). No proof of service is on file. The Code of Civil Procedure section 1005 sets forth the requirements for providing written notice of all motions. The Court cannot reach the merits of a motion absent timely written notice to all parties. Therefore, Plaintiff’s Motion is **DENIED** without prejudice.

No proposed order was submitted as required by Local Rule 5.17(D). Plaintiff is ordered to submit the proposed order.

LOGAN VS. GENERAL MOTORS, LLC

CASE NUMBER: 26CV-0211049

Tentative Ruling on Demurrer: General Motors LLC (“GM”) moves for an order sustaining GM’s Demurrer to the Third and Fourth Causes of Action of Plaintiff’s First Amended Complaint. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ryan Kay does not establish compliance with the meet and confer requirements. CCP 430.41(a)(4) provides that an insufficient meet and confer process shall not be grounds to overrule or sustain a demurrer. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

GM demurs to Plaintiff’s Third Cause of Action for Fraudulent Concealment on the grounds that it fails to state facts sufficient to establish the cause of action and fails to allege the transactional relationship giving rise to a duty to disclose. GM also demurs to Plaintiff’s Fourth Cause of Action for violation of the Consumer Legal Remedies Act (CLRA) on the grounds that it fails to set forth facts sufficient to constitute a cause of action and that it is barred by Plaintiff’s failure to give proper notice. The First Amended Complaint filed July 29, 2026 is the operative pleading.

Third Cause of Action – Fraudulent Concealment

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606 [172 Cal. Rptr. 3d 218]; see also CACI No. 1901.) A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff’s fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (i.e., exclusive knowledge); (4) the